

C2 OTHER RESIDENTIAL DEVELOPMENT

Development is to comply with the provisions of this part, as well as other relevant parts of this DCP. Where there are inconsistencies, the provisions of this Part shall prevail to the extent of the inconsistency. This Part applies to the residential components of:

- Boarding Houses;
- Co-living housing;
- Group homes;
- Hostels;
- Manor Houses;
- Multi dwelling housing;
- Multi dwelling housing (terraces);
- Residential flat buildings;
- Seniors housing;
- Serviced apartments;
- Shop top housing; and
- Student accommodation.

State Environmental Planning Policy (Exempt and Complying Development Codes) 2008 (Code SEPP).

For the purposes of 'Low Rise Medium Density' development as permitted through Part 3B of the Code SEPP, this Part is to be considered in the design and assessment of manor houses and multi dwelling housing (terraces). Refer to the Code SEPP for the land use definitions of manor houses and multi dwelling housing (terraces).

State Environmental Planning Policy (Housing) 2021 – Chapter 4 Design of residential apartment development (Housing SEPP)

Development that is subject to Chapter 4 of the Housing SEPP is required to address the provisions of the Apartment Design Guide (ADG), in addition to this part of the DCP. As per Clause 149 of the Housing SEPP, if a DCP contains provisions that specify requirements, standards, or controls in relation to the following, those provisions are of no effect:

- (a) visual privacy,
- (b) solar and daylight access,
- (c) common circulation and spaces,
- (d) apartment size and layout,
- (e) ceiling heights,
- (f) private open space and balconies,
- (g) natural ventilation,
- (h) storage.

Where this is the case, a notation has been placed next to the relevant section of this Part. Given the nature of the existing and desired future character of Waverley, in many cases where the above provisions of the ADG cannot be achieved, the provisions of the relevant Part of this DCP are intended to provide additional guidance in achieving the relevant objectives.